



DISCIPLINE POLICY – SUMMARY GRID

The following summary grid provides an overview of *Appendix A – Categories of Violations* and *Appendix B – Discipline Matrix* from the Discipline Policy for Unionized Transportation Employees in Canada (“the Policy”). In addition, managers must apply a contextual approach and adhere to the principle of progressive discipline. Relevant mitigating and aggravating factors to this process, as established by jurisprudence, are listed in Appendix C of the Policy. Managers must refer to the full Policy when making discipline decisions. The Policy applies strictly to Conductors, Assistant Conductors, Locomotive Engineers and Yardpersons, who are not on a probationary period. In the case of a discrepancy between this grid and the Policy, the Policy will take precedence.

	HISTORY OF VIOLATIONS				
LEVEL 1 VIOLATIONS A violation that is non-critical and does not otherwise meet the criteria for a Level 2, 3, or 4 violation.	None	One	Two	Three	Four
	Suggested discipline: Written reprimand	Suggested discipline: Up to 10 demerits	Suggested discipline: Up to 15 demerits	Suggested discipline: Up to 20 demerits	Suggested discipline: Up to 25 demerits
EXAMPLES OF VIOLATIONS (BUT NOT LIMITED TO)	• Failure to follow radios and procedures • Peer to peer rule violations resulting in no incident or a minor risk of incident • Incorrect operation of headlights/ditch lights on locomotive • Failure to wear prescribed personal protective equipment • Failure to wear seat belts in a motor vehicle or other moving equipment • Smoking in non-designated areas or onboard a locomotive or moving equipment • Violation of CROR Rule 34 (calling fixed signals) • Culpable absenteeism				
LEVEL 2 VIOLATIONS A violation that is serious or has potential to result in accident or incident, damage to equipment, or cause injury, which may include a violation of a Life Critical Rule, and does not otherwise meet the criteria for a Level 3 or Level 4 violation.	None	One	Two		
	Suggested discipline: Up to 15 demerits	Suggested discipline: Up to 20 demerits	Suggested discipline: Up to 25 demerits		
EXAMPLES OF VIOLATIONS (BUT NOT LIMITED TO)	• Late reporting of accident or injury • Improperly mounting and dismounting equipment • Failure to properly line switches for intended movement (Yard) • Failure to restore a derail and/or derail movement • Leaving cars in the foul • Failure to maintain an up-to-date rule book • Improperly coupling and uncoupling cars • Improperly moving equipment through doors • Failure to protect a shoving movement • Failure to use correct communication methods when going between equipment • Failure to maintain required documentation • Failure to correctly perform brake test • Locomotive speeding – 10 mph over maximum authorized speed • Run through switch • Extended absence without authorization or pattern absences				

HISTORY OF VIOLATIONS					
LEVEL 3 VIOLATIONS A severe violation of a critical rule, or that is related to or implicates a critical rule, which does not otherwise meet the criteria for a Level 4 violation. A Level 3 violation also includes conduct that may subject the employee to mandatory decertification as required by applicable regulations.	None	One			
	Suggested discipline: 30 demerits	Suggested discipline: 45 demerits			
EXAMPLES OF VIOLATIONS (BUT NOT LIMITED TO)	• Failure of a communication and electronic device rule (CROR General Rule A) • Stop signal violations (CROR Rule 439) • Blue/Red Flag violations • Track Protection and Track Authority violations (CROR Rule 42, TOP, OCS) • Failure to perform a required initial, intermediate, or transfer air test • Tampering with a safety device • Failure of any rule that may subject the employee to decertification by applicable regulations • Failure to properly secure cars or locomotives • Gross insubordination (e.g. blatant refusal to comply with the instructions of a Company Officer) • Sleeping or assuming a sleeping position (CROR General Rule A) • Presence of an unauthorized person in the controlling locomotive • Failure to properly inspect equipment before coupling and moving cars (CROR 113) • Conduct unbecoming or incivility in the workplace • Improper securement of key trains • Failure to properly line switches for intended movement (mainline)				
LEVEL 4 VIOLATIONS A violation that involves conduct that is serious enough to result in termination of employment.	One				
	Suggested discipline: 60 demerits - Discharge				
EXAMPLES OF VIOLATIONS (BUT NOT LIMITED TO)	• Violence or harassment in the workplace • Making material false statements or concealing material facts concerning matters under investigation • Intentional acts that cause harm to other persons or recklessly endanger the safety of employees or the public • Purposeful disregard for rules or policies • Failure, refusal, or adulteration of a drug or alcohol test • Unauthorized possession of Company assets • Fraud and other misappropriation • Theft • Conduct that causes reputational harm to the Company				

